

26CV00398 Ruby Campbell-Conn vs Nancy Maynez Casey

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-06

Motion: Motion: Stay

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Tentative Ruling: Ruby Campbell-Conn vs Nancy Maynez Casey

Case Number

26CV00398

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/06/2026 - 10:00

Nature of Proceedings

Motion: Stay

Tentative Ruling

Ruby Campbell-Conn v. Nancy Maynez Casey

Case No. 26CV00398

Hearing Date: July 6, 2026

HEARING: Motion for Stay of Proceedings

ATTORNEYS: For Plaintiff Ruby Campbell-Conn: Robert J. Stoll, Mathew C. Stoll, The Stoll Law Firm

For Defendant Nancy Maynez Casey: Geronimo Perez, Herbert A. Benitez, Tyson & Mendez, LLP

TENTATIVE RULING:

The motion of defendant Nancy Maynez Casey for stay of proceedings is denied without prejudice to defendant filing a motion for protective order if warranted.

Background:

On January 21, 2026, plaintiff Ruby Campbell-Conn initiated this action by filing a complaint against defendant Nancy Maynez Casey pertaining to a motor vehicle accident occurring on June 29, 2025, near the intersection of Micheltorena Street and Laguna Street in Santa Barbara. (Compl., pp. 4-6.) As alleged in the complaint, defendant was driving a vehicle that collided with plaintiff's vehicle causing plaintiff injuries (Car Accident). (Ibid.) Defendant allegedly was driving under the influence of alcohol or drugs, driving at excessive speeds, and failed to yield to a stop sign. (Ibid.) The complaint sets forth a cause of action for motor vehicle, a cause of action for general negligence, and seeks compensatory and exemplary damages. (Compl., ¶¶ 10-11 & pp. 4-6.)

On February 17, 2026, plaintiff served a deposition notice for defendant's deposition to take place on May 25, 2026, and to obtain relevant documents. (Perez Decl., Ex. A.)

On March 13, 2026, defendant filed an answer to the complaint, generally denying the allegations therein and setting forth twenty-three affirmative defenses.

On May 15, 2026, defendant filed this motion seeking a stay of this proceeding pending the resolution of the criminal misdemeanor complaint (Criminal Case) filed against defendant in the case entitled, *The People of the State of California v. Nancy Casey*, Santa Barbara Case No. 25CR09249.

The Criminal Case was initiated on November 6, 2025, and appears to assert charges based on the same Car Accident. (Def. RJN, Ex. 1.) The Criminal Case alleges one count of driving under the influence of alcohol causing injury in violation of Vehicle Code section 23153, subdivision (a), and one count of driving with a .08 percent blood alcohol causing injury in violation of Vehicle Code section 23153, subdivision (b). (Ibid.) The records submitted by defendant indicate defendant entered a plea of not guilty as to both charges. (Def. RJN, Ex. 3.)

Defendant argues that the equities weigh in favor of granting a stay to so that defendant's Fifth Amendment right against self-incrimination is not infringed during discovery proceedings. Plaintiff opposes this motion arguing that any issues pertaining to self-incrimination can be addressed on a case-by-case basis through the typical discovery procedures.

Analysis:

"Whereas the Fifth Amendment privilege may be invoked by a civil litigant [citation], it does not provide for protection against civil penalties. '[W]hile the privilege of a criminal defendant is absolute, in a civil case a witness or party may be required either to waive the privilege or accept the civil consequences of silence if he or she does exercise it.' " (*Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1054.)

"The Constitution does not require a stay of civil proceedings pending the outcome of criminal proceedings. [Citation.] A court, however, has the discretion to stay civil proceedings, postpone civil discovery, or impose protective orders and conditions 'when the interests of justice seem [] to require such action, sometimes at the request of the prosecution, ... sometimes at the request of the defense[.]' " (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 886.)

"The determination whether to stay an action pending resolution of criminal proceedings should be made in light of the particular circumstances and competing interests involved. [Citation.] The decisionmaker should consider the extent to which Fifth Amendment rights are implicated. In addition, factors to be considered include: (1) the interest of the party opposing the stay in proceeding expeditiously with the action, and the potential prejudice to the party opposing the stay of a delay; (2) the burden which any particular aspect of the proceedings may impose on the party seeking the stay; (3) the convenience to the court in management of its cases and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending cases. [Citation.] While the privilege against self-incrimination is a factor to be considered, the issue of a stay itself does not implicate constitutional issues." (People ex rel. Harris v. Rizzo (2013) 214 Cal.App.4th 921, 952.)

"Where, as here, a defendant's silence is constitutionally guaranteed, the court should weigh the parties' competing interests with a view toward accommodating the interests of both parties, if possible.... The rationale ... is based on Fifth Amendment principles as well as the inherent unfairness of compelling disclosure of a criminal defendant's evidence and defenses before trial. Under these circumstances, the prosecution should not be able to obtain, through the medium of the civil proceedings, information to which it was not entitled under the criminal discovery rules." (Pacers, Inc. v. Superior Court (1984) 162 Cal.App.3d 686, 690.)

Applying these principles, the plaintiff seeks to take defendant's deposition as to the issues in this civil action, which are also in dispute in the Criminal Case. On the one hand, if possible, defendant should not be put in a position whereby she may effectively need to waive her right against self-incrimination to raise a defense in this action or provide information to which prosecutors are not otherwise entitled in the Criminal Case. On other hand, if possible, plaintiff should not be required to wait indefinitely to pursue her civil case. Plaintiff could suffer prejudice if she is not able to promptly take discovery. Memories can fade and evidence can become stale over time, making the plaintiff's case more difficult to prove. The court must weigh these competing interests.

Considering the circumstances, the interests of the parties, and other factors, the court will deny the request for stay without prejudice to the defendant filing a targeted motion for protective order as to any particular discovery issues. It seems that discovery can proceed normally as to certain documents and issues that do not infringe on defendant's Fifth Amendment right against self-incrimination. A stay of the entire action does not appear appropriate at this time. There is a mechanism for defendant to assert her Fifth Amendment rights in response to any particular discovery request. There is also a mechanism for plaintiff to seek a protective order if a particular discovery request or method is so problematic that a protective order is warranted. The court cannot anticipate all possibilities. The parties are required to meet and confer over the issues. The court encourages the parties to work with one another to come up with a workable solution as to issues that may arise at deposition or in the context of other discovery procedures.

The court will grant defendant's request for judicial notice as to Exhibit 1, Complaint, Santa Barbara Superior Court Case No. 25CR09249, dated November 6, 2025, and Exhibit 3, Case Docket for Santa Barbara Superior Court Case No. 25CR09249, dated May 15, 2026. (See Evid. Code, § 452, subd. (d).) The request is otherwise denied.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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